CITY OF CLEARLAKE
MEASURE "D"

D "SHALL THE OFFICE OF CITY TREASURER BE APPOINTIVE?"

Yes_____ No_____

IMPARTIAL ANALYSIS OF MEASURE D

Measure D is placed on the ballot by the City Council of the City of Clearlake and asks voters whether the office of City Treasurer should be converted from an elected to an appointed position. A "yes" vote adopts Ordinance No. 287-2026, which makes the office appointive and provides transition rules.

State law (Government Code Section 36501) requires general law cities like Clearlake to have a City Treasurer. The office may be elected or appointed, but conversion from elected to appointed requires voter approval (Government Code Section 36508). The City Treasurer is responsible for receiving and safekeeping all public funds, complying with laws governing their deposit and security, paying out money only on authorized warrants, and reporting monthly on receipts, disbursements, and fund balances (Clearlake Municipal Code Section 2-5.1; Government Code Section 41001 et seq.).

Under Government Code Section 36502, the only qualifications to hold the elected office are that the person be a resident of the City, a registered voter in the City, and at least 18 years of age. State law does not permit the City to require additional qualifications, such as education, training, or experience.

If a majority of voters approve Measure D, the office would become appointive under Government Code Sections 36508 through 36510, and the City Council would appoint the City Treasurer. The appointee would serve at the pleasure of the City Council, need not be a City resident or registered voter, and could be required to meet professional qualifications. The Council could by ordinance vest its appointment authority in the City Manager. The duties of the office would not change. The ordinance would take effect ten days after the City Council declares the election results (Elections Code Section 9217). The Council could amend the ordinance without another vote of the people, except as to the office's appointive character.

The office of City Treasurer appears on this same November 3, 2026 ballot. Measure D's transition rules provide that if it passes, no person shall be declared elected to, assume, or qualify for the office of City Treasurer by virtue of votes cast at this election, even if the person qualified for the ballot as a candidate, and all votes cast for that office shall be null and void. Anyone holding the office when the ordinance takes effect would continue until the Council appoints a City Treasurer.

A **"YES"** vote on Measure D is a vote **in favor of** making the City Treasurer an appointed position. No City Treasurer elected at this election would take office; the City Council would fill the position by appointment.

A **"NO"** vote on Measure D is a vote **against** the change. The City Treasurer would remain an elected office, and the person elected City Treasurer at this election, if any, would serve a four-year term.

The above statement is an impartial analysis of Measure D. For a copy of the measure's full text, contact the City Clerk at (707) 994-8201 and a copy will be provided at no cost.

/s/ Scott G. Drexel, City Attorney, City of Clearlake

If you desire a copy of the City of Clearlake's Resolution No. 2026-29 calling the election, please call the Lake County Registrar of Voter's office at 263-2372 and a copy will be mailed to you at no cost. You may also view the resolution by visiting www.lakecounty.ca.gov/818/Registrar-of-Voters and click on the current election (Nov 3, 2026)

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ARGUMENT IN FAVOR OF MEASURE D

CITY OF CLEARLAKE — GENERAL MUNICIPAL ELECTION, NOVEMBER 3, 2026

Vote YES on Measure D to make the office of City Treasurer an appointed position.

The City Treasurer is responsible for receiving and safely keeping all public funds of the City, complying with the laws governing the deposit and securing of public funds, paying out money only on warrants signed by legally designated persons, and submitting monthly reports of all receipts, disbursements, and fund balances to the City Council.

Under state law, the only qualifications to run for City Treasurer are that a candidate be at least 18 years of age, a resident of the City, and a registered voter. The City is prohibited from requiring any education, training, or financial experience of candidates for this elected office. The position has not been filled by an elected City Treasurer in nearly two decades. The Treasurer's duties are already carried out by professional City staff.

Measure D simply brings the Municipal Code in line with how the City actually operates. If a majority of voters approve the measure, the City Council may set professional qualifications for whoever performs the Treasurer's duties and may assign those duties to qualified existing staff, including by delegating appointment authority to the City Manager. Measure D does not create a new position. The duties of the office do not change, and the person performing them remains accountable to your elected representatives.

The City Council placed Measure D on the ballot so that the voters of Clearlake can decide this question directly. Measure D requires a simple majority of the votes cast to pass.

Please join me in voting YES on Measure D.

s/Dirk Slooten, Mayor, City of Clearlake

NO ARGUMENT AGAINST MEASURE D WAS SUBMITTED.